

“Provided the State of destination does not object, the present Convention shall not interfere with – a) the freedom to send judicial documents, by postal channels, directly to persons abroad, b) the freedom of judicial officers, officials or other competent persons of the State of origin to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination, (c) the freedom of any person interested in a judicial proceeding to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination.”

Water Splash, Inc. v. Menon (2017) 581 U.S. 271, 275.

Here, the proof of service of summons filed on April 21, 2026, indicates service was made by substituted service. Whether or not Canada has objected to Article 10 of the Hague Service Convention is irrelevant. Substituted service is not an authorized alternative method of service permitted by Article 10. The Court notes that under OBCA Section 242(2), “service of any process on a corporation after its dissolution shall be deemed to be sufficiently made if it is made upon any person last shown on the records of the Ministry as being a director or officer of the corporation before the dissolution.” Service was made upon a purported co-founder’s mother, who is undisputedly not a former director or officer of the corporation. Additionally, the process server was told on several occasions that the co-founder he sought to serve did not live at the service address and exhibit A of the declaration of Cordiano indicates several other addresses were located but no information was provided regarding whether any attempts were made to serve the required parties at these addresses.

The Court notes that lack of personal jurisdiction was also raised by Defendant and Plaintiff requested limited jurisdictional discovery. However, the Court is unable to rule on the merits regarding personal jurisdiction until the Summons and Complaint have been properly served.

The Motion to quash service of Summons is **GRANTED** on the grounds that service of the Summons and Complaint is invalid. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant shall prepare the order.

LAKEVIEW LOAN SERVICING, LLC VS. GONZALEZ, ET AL.

CASE NUMBER: 25CV-0207895

Tentative Ruling on Order to Show Cause Re Dismissal: An Order to Show Cause Re: Dismissal (“OSC”) issued on August 7, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff and Counsel for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. No response to the OSC has been filed. Sanctions of \$250, and \$500 have previously been imposed and have not been paid. It appears that no lesser sanctions will prompt compliance. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

LANE VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206212

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on July 23, 2026, to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement in violation of CRC 3.1380. All parties have submitted Declarations in response to the OSC which explain the failure to timely file MSC statements. The OSC is **DISHCHARGED**. No sanctions will be imposed. **Trial is set to**

commence tomorrow, September 9, 2026 at 8:45 a.m in Department 64. No appearances are necessary on today's calendar.

MCCAIN VS. EST OF RICHARD CARL RIPLEY, ET AL.

CASE NUMBER: 25CV-0207239

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on August 12, 2026, to Plaintiff for failure to appear at the hearing on the Order to Show Cause re Dismissal on July 6, 2026. No response to the OSC has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms today's review hearing set for 9:00 a.m.

PRESIDIO, ET AL. VS. FCA US LLC, ET AL.

CASE NUMBER: 25CV-0209055

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on July 15, 2026, to Plaintiffs and Counsel, for failure to timely serve pleadings. No response to the OSC has been filed. However, the Court notes that proper proof of service of summons has been filed. The OSC is **DISCHARGED**. Sanctions will not be imposed. This matter is set for review regarding status of responsive pleadings on **Monday, October 12, 2026 at 9:00 a.m. in Department 64.** No appearances are necessary on today's calendar.

IN RE: RADIE

CASE NUMBER: 26CV-0210405

Tentative Ruling on Petition for Change of Name: Petitioner Amber Marie Radie seeks to change her minor daughter's name. Proper proof of service of the father is on file. On August 13, 2026, the minor's father Adam Mattson filed a Declaration, stating his consent to the name change. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

ROCKY TOP RENTALS, LLC VS. VAN NORMAN ERICKSON, ET AL.

CASE NUMBER: 25CVG-02320

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on August 12, 2026, to Plaintiff and Counsel for failure to serve and timely prosecute. This action was filed November 6, 2025 and is still not at issue. No proof of service of summons is on file for Defendant Eli Van Norman Erickson or Mark Ludwig. No response to the OSC has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms today's review hearing set for 9:00 a.m.

SEKHON VS. HUTT

CASE NUMBER: 26CV-0211420

Tentative Ruling on Special Motion to Strike: Defendant Christopher Hutt moves to strike the Complaint pursuant to CCP § 425.16. The Court cannot reach the merits of the Motion, because it was not timely noticed for today's hearing date. The Proof of Service by mail was filed August 14, 2026. It states the Motion was mailed to Plaintiff on August 13, 2026, which is untimely by 4 days. See CCP § 1005(b), which requires 16 court days' notice, plus 5 calendar days for mailing. Absent a request for a continuance to timely notice the Motion, the Court intends to deny it without prejudice.